Shubam Shan vs State Nct Of Delhi on 24 December, 2024

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* IN THE HIGH COURT OF DELHI AT NEW
+ BAIL APPLN. 4731/2024 & CRL.M.A. 3
SHUBAM SHAN

STATE NCT OF DELHI

CORAM:
HON'BLE MR. JUSTICE VIKAS MAHAJAN
ORDER

% 24.12.2024

1. The present petition has been filed under Section 482 BNSS seeking anticipatory bail in connection with FIR No. 796/2023 under Sections 406/420/506 IPC registered at Police Station Adarsh Nagar, North West, Delhi.

2. The case of the prosecution is that FIR was lodged at the instance of the complainant/Ms. Parmila Lekhi who filed a complaint regarding fraud, extortion of money and criminal breach of trust by the present petitioner alleging that she was defrauded by one Mr. Kishan to the extent of Rs. 50 lacs.

3. The present petitioner impersonated himself as RAW Agent before the complainant and assured her to get the cheated amount transfer from said Mr. This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 24/12/2024 at 22:44:02 Kishan to her account and on that pretext he took an amount of Rs. 18.75 lacs from the complainant in his savings account.

4. The learned counsel for the petitioner submits that out of the alleged amount of Rs. 18.75 lacs, Rs. 3 lacs was returned prior to the registration of FIR. However, an amount of Rs. 2 lacs has been transferred to the account of the complainant on 23.12.2024 and the balance amount of Rs. 13.75 lacs shall be paid by the applicant to the complainant in four monthly equal instalments.

5. He submits that on 15th of every month starting from January 2025, the applicant undertakes to transfer an amount of Rs. 3,43,750/- in the account of the complainant without any default.

6. He further submits that the petitioner has sworn an affidavit stating the aforesaid terms, a copy of which has been handed over in the Court and the same is taken on record.

7. He further submits that the original of the said affidavit will be filed online within a period of four working days. The statement is taken on record.

8. The learned counsel for the complainant, who has joined through VC, on instructions from the complainant, who is present in Court submits that the complainant has no objection in case interim protection is granted to the petitioner till the time entire payment is made by the petitioner.

9. Having regard to the aforesaid arrangement, it is directed that no coercive action be taken against the petitioner subject to his joining investigation on 27.12.2024 at 04:00 p.m. and subsequently as and when directed by the I.O concerned and further subject to the strict compliance of the undertaking given by the petitioner in the affidavit, failing which the application will be considered on merits on the next date. Further, in the event of any default in payment of instalment(s) as agreed by the petitioner, the This is a digitally signed order.

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10. List on 22.04.2025.

VIKAS MAHAJAN, J DECEMBER 24, 2024/dss This is a digitally signed order.

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